

**BEFORE THE
FEDERAL MARITIME COMMISSION**

FRANCIS SHEKA KANU,

Complainant,

v.

EJIKE DICKSON EZE, SEALINES INTERNATIONAL,
SEAMATES INTERNATIONAL INC. and MAERSK,

Respondents.

DOCKET NO. 25-05

**NOTICE OF COMPLAINANT’S FAILURE TO
COMPLY WITH ORDER TO SHOW CAUSE AND
REQUEST TO GRANT MOTION TO DISMISS THE COMPLAINT**

Respondents, SeaLines International (“SeaLines”) and SeaMates International, Inc. (“SeaMates”)(SeaLines and SeaMates collectively “SeaLines Respondents”), by their attorneys, Betancourt, Greco & Evans LLC, state as follows:

1) On April 11, 2025, SeaLines filed and served its Motion to Dismiss the Complaint (“SeaLines’ Motion to Dismiss”) pursuant to Rule 502.69 and 502.70 of the Federal Maritime Commission’s Rules of Practice and Procedure (the “FMC Rules”) and pursuant to Rules 12(b)(1) and 12(b)(6) of the Federal Rules of Civil Procedures (the “Federal Rules”), made applicable to this proceeding by the Rule 502.12 of the FMC Rules, to dismiss the Complaint because: (i) the claims asserted in the Complaint are breach of contract claims over which the Federal Maritime Commission does not have jurisdiction; (ii) the claims asserted in the Complaint are barred by the applicable statute of limitation; and (iii) the Complaint fails to allege facts which state a cause of action under the Shipping Act.

2) Complainant, Francis Sheka Kanu's ("Kanu") response to SeaLines' Motion to Dismiss was due on or before April 28, 2025. Kanu failed to file any response.

3) On May 6, 2025, the Commission issued an Order to Show Cause ("OTSC") directing that Complainant, Kanu, respond to SeaLines' Motion to Dismiss and show cause why his response should be considered no later than May 20, 2025.

3) Kanu failed to file any response to SeaLines' Motion to Dismiss by May 20, 2025 or otherwise show cause why his response should be considered as required by the OTSC.

4) Accordingly, Kanu should be barred from opposing SeaLines Motion to Dismiss and it should be granted, on the merits and with prejudice.

WHEREFORE, the SeaLines Respondents hereby respectfully request that SeaLines' Motion to Dismiss be granted and that the Complaint be dismissed in its entirety, on the merits and with prejudice.

Dated: May 22, 2025

Respectfully submitted,

BETANCOURT, GRECO & EVANS LLC

/s/ John Greco

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*Counsel for Respondents SeaLines International,
Inc. and SeaMates International, Inc.*

CERTIFICATE OF SERVICE

I certify, under penalty of perjury, that on this 22th day of May, 2025 the foregoing Notice of Complainant's Failure to Comply with Order to Show Cause and Request to Grant Motion to Dismiss the Complaint was served via electronic mail on:

Francis Sheka Kanu
Francis Sheka Kanu
George W. Wright
Narinder S. Parmar

francesgates@bellsouth.net
francesgats@bellsouth.net
gwright@wright-associate.com
nparmar@wright-associate.com

and on Claimant, Francis Sheka Kanu, by first class mail at 6042 The Plaza, Charlotte, NC 28215, the address set forth in the Notice of Appearance on file with the Commission in this case.

/s/ John Greco
John Greco